§ 5–51.204 Requirement for use of progress payments.

(a) The contracting officer shall include in the invitation for bids or request for proposals the provision set forth in § 5–51.206, unless he determines that progress payments would be impractical or not reasonably necessary. Ordinarily, it shall be considered practical or reasonably necessary to make progress payments unless one or more of the following factors are present:

(1) The procurement is not expected to result in a contract of $10,000 or more.

(2) The contracting officer determines that the time between starting performance (usually immediately following the date of award) and delivery of the first end items is of such short duration (90 days or less) as to obviate the need for progress payments.

(3) The contract provides for the placing of orders and the making of payments by more than one office.

(b) In unusual conditions, progress payments may be considered practical or reasonably necessary even though one or more of the exceptions of (a) (1), (2), or (3), above, may be applicable.

§ 5–51.205 Provision for invitations for bids or requests for proposals.

The following provision shall be included in the invitation for bids or request for proposals under the circumstances set forth in § 5–51.204:

AVAILABILITY OF PROGRESS PAYMENTS

The Government will make provision for progress payments in any contract resulting from this invitation for bids (or request for proposals) by including an appropriate clause in the contract if:

(a) The period of time between starting performance and delivery of the first end items will exceed 6 months; or

Contract performance is likely to involve expenditures prior to delivery of the first end items, having a material impact on the contractor's working funds, or, in the case of progress payments first requested subsequent to award, involves expenditures having such impact; and

(b) The bidder (offeror) or contractor makes a written request for progress payments and is found eligible for such payments under applicable regulations.

The need for progress payments on the foregoing basis will not be considered a handicap or an adverse factor in awarding contracts.

If a bidder (offeror) desires progress payments, and accompanies his bid (offer) with a written request therefor, the bidder (offeror) shall also check the appropriate box below:

☐ Progress payments are desired but bid (offer) is not conditioned on receiving progress payments.

☐ Bid (offer) is conditioned on receiving progress payments.

(NOTES: 1. If bid (offer) is conditioned on the availability of progress payments and bidder (offeror) is found ineligible for progress payments, the bid (offer) will be rejected. 2. Submission of a bid (offer) without requesting progress payments does not preclude the bidder (offeror) from later requesting progress payments in accordance with applicable regulations, prior to or after award of contract.)

§ 5–51.206 Progress payment clause for use in contracts.

When progress payments are to be authorized, an appropriate clause shall be included in the contract in accordance with GSA Personal Property Management Regulation No. 33, December 31, 1956, and this Subpart 5–51.2.

Effective date. These regulations are effective immediately.

Dated: June 14, 1960.

FRANKLIN FLOETE,
Administrator of General Services.

[F.R. Doc. 60–5662; Filed, June 20, 1960; 8:46 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

SUBCHAPTER G—EXCHANGES

[Circular No. 2047]

PART 147—EXCHANGES BY STATES UNDER TAYLOR GRAZING ACT

Application for Exchange

On page 8078 of the FEDERAL REGISTER of October 6, 1959, there was published a notice and text of a proposed amendment of § 147.4 of Title 43, Code of Federal Regulations. The purpose of this amendment is, consistent with the objectives of section 8 of the Taylor Grazing Act, to facilitate the processing of applications for exchange of lands filed by States.

Interested persons were given 30 days within which to submit written comments, suggestions or objections with respect to the proposed amendment. No comments, suggestions or objections have been received, and the proposed amendment is hereby adopted without change and is set forth below. This amendment shall become effective at the beginning of the 30th calendar day following the date of this publication in the FEDERAL REGISTER.

FRED A. SEATON,
Secretary of the Interior.

JUNE 14, 1960.

The title to § 147.4 is amended and a new paragraph (c) is added to that section, reading as follows:

§ 147.4 Application for exchange; evidence required; segregative effect of application.

* * * * *

(c) The filing of a valid application for exchange under the regulations of this part will segregate the selected public lands to the extent that any subsequently tendered application, allowance of which is discretionary, will not be accepted, will not be considered as filed, and will be returned to the applicant. Where an application is withdrawn or finally rejected in whole or in part, the segregative effect of the application on the lands covered by the recall or rejection will terminate at 10:00 a.m. on the 30th day from and after the date a notice of the withdrawal or rejection is first posted in the land office having jurisdiction over said lands.

[F.R. Doc. 60–5664; Filed, June 20, 1960; 8:46 a.m.]

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 2126]

[Utah 035987]

UTAH

Withdrawing Lands for Reclamation Purposes (Emery County Project)

By virtue of the authority vested in the Secretary of the Interior by section 3 of the act of June 17, 1902 (32 Stat. 388; 43 U.S.C. 416), it is ordered as follows:

1. Subject to valid existing rights, the following-described public lands in Utah are hereby withdrawn in the first form from all forms of appropriation under the public land laws, including the mining but not the mineral leasing laws, and reserved for use of the Bureau of Reclamation, Department of the Interior, in connection with the Emery County Project:

SALT LAKE MERIDIAN

T. 17 S., R. 6 E.,
Sec. 32, W½SE¼SW¼.
T. 18 S., R. 6 E.,
Sec. 5, W½W½SE¼.

The areas described aggregate 60 acres.

2. The withdrawal made by this order shall attach to the following-described nonpublic lands upon acquisition by the United States of title thereto or any interest therein:

SALT LAKE MERIDIAN

T. 17 S., R. 6 E.,
Sec. 32, W½W½.

The area described contains 160 acres.

ROGER ERNST,
Assistant Secretary of the Interior.

JUNE 15, 1960.

[F.R. Doc. 60–5665; Filed, June 20, 1960; 8:46 a.m.]

[Public Land Order 2127]

[Anchorage 050395]

ALASKA

Partly Revoking Executive Order No. 3406 of February 13, 1921, Which Withdrew Lands for Lighthouse Purposes

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 3406 of February 13, 1921, reserving lands in Alaska for lighthouse purposes, is hereby revoked so far as it affects the following-described lands:

133. *Susitna River Entrance-Cook Inlet*

Chart C & GS No. 8553—Sheet No. 95

All of the small island in the mouth of the Susitna River called Delta Island. Approximate longitude 150°34′ W., latitude 61°16′ N.

Containing 60 acres.